

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

C.R. No.1138-D/2019

Mst. Afzal Bibi Versus Hazoor Shah etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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09.10.2019 Mr. Muhammad Ibrar Ansari, Advocate for the petitioner.

Through this Civil Revision, the petitioner has called in question judgment and decree dated 30.03.2018 passed by learned Civil Judge Multan whereby suit for specific performance of oral agreement to sell filed by the petitioner was dismissed and judgment dated 27.09.2019 passed by learned Additional District Judge, Multan dismissing the appeal filed by the petitioner against the aforesaid judgment of the learned Trial Court. It is argued by learned counsel for the petitioner that the impugned judgments and decrees are not sustainable in the eyes of law because while passing the said judgments learned Courts below have not taken into consideration the fact that agreement to sell had been proved by producing two witnesses PW-2 & PW-3 in whose presence the said agreement had been undertaken by her sister Mst. Jamshed Bibi, in her favour.

- 2. Heard. Record perused.
- 3. It is observed that the suit property which comprises of 23 Marlas & 08 yards consisting on House No.120-A,

Jinnah Town, Nishtar Road, Multan was owned by Jamshed Bibi deceased who was sister of the present petitioner, whereas respondents No.1 to 4 are brothers and respondent No.5 is the mother and respondents No. 6 to 8 are sisters of Jamshed Bibi hence inter se the parties are related to each other. Respondent No.5 who died during pendency of proceedings has been represented by her legal heirs (respondents No.3, 6 & 8) being their mother. It is claimed by the petitioner that Mst. Jamshed Bibi deceased had agreed to sell the suit property to her for consideration of Rs.70,00,000/- out of which an amount of Rs.50,00,000/- was received by Jamshed Bibi in the presence of witnesses and had further agreed to receive the balance consideration amount of Rs.20,00,000/- till 30.08.2012 but before the said scheduled date Jamshed Bibi died issueless on 18.08.2012. Consequently the petitioner filed suit for specific performance of agreement to sell against the respondents / legal heirs of the deceased which suit was contested by respondents No.1 to 4 by filing written statement while respondents No.5 & 8 filed conceding written statements in favour of the petitioner. The basic issue which requires determination is whether deceased Jamshed Bibi has agreed to transfer her property to the petitioner through an oral agreement to sell (**'impugned agreement'**) for consideration of Rs.70,00,000/- or otherwise as the same had been denied by respondents No.1 to 4. In order to prove the impugned agreement, the petitioner produced herself in

the witness box as PW-1 and two witnesses Muhammad Shahbaz and Hashmat Ullah as PW-2 & PW-3 respectively while the sale deed No.191/1 has been produced as Ex.P.1, attested copy of sale deed No.76/1 as Ex.P-2, attested copy of sale deed No.4326/1 as Ex.P-3, original Sui Gas bill dated 03.01.2018 as Ex.P-4 and original electricity bill dated 27.12.2017 as Ex.P-5. While on the other hand, respondents No.4d and 1 appeared as DW-1 & DW-2 and Muhammad Abbas & Muhammad Sharif as DW-3 & DW-4 respectively and in documentary evidence they have produced photocopies of receipts of payment of tax of the suit property in the name of Jamshed Bibi vendor as Mark-D.1, photocopy of Sui Gas bill as Mark-D.2.

4. In order to prove an oral agreement to sell a party is required to specifically state in the plaint the time, date and place where the agreement was executed and the name of witnesses in whose presence the said transaction had been agreed between the parties. Reliance in this behalf is placed on case titled “Moiz Abbas v. Mrs. Latifa and others” (2019 SCMR 74) and “Sheikh Akhtar Aziz v. Mst. Shabnam Begum and others” (2019 SCMR 524) However, perusal of the plaint does not reveal when and where agreement was entered between the parties. The witness PW-3 (Hashmat Ullah) is husband of the present petitioner while PW-2 (Muhammad Shahbaz) is friend of her husband Hashmat Ullah, therefore, both are interested witnesses to have the suit decreed. Although all the witnesses claimed that

agreement was entered into by deceased Jamshed Bibi orally in their presence in favour of the petitioner and the petitioner / PW-1 has introduced date of agreement as 30.05.2012 but the same is not mentioned in the plaint, therefore, evidence of the witnesses to this extent is beyond the pleadings which cannot be relied upon, especially when the pleadings suffers from fatal defect of not mentioning the date, time and place as per dictum laid down in the judgments referred to above. Even otherwise the petitioners have failed to establish as to how such a huge amount of Rs.50,00,000/- was paid by the petitioner to the deceased and where she kept the same particularly when both the petitioner and the deceased Jamshed Bibi were ladies. Although the petitioner claims that after receiving the said amount the deceased has purchased some jewelry but this fact has also not been proved by producing any cogent evidence. Even the witnesses PW-1 to 3 have not been able to substantiate the mode and manner of making such payment and said payment was not proved, which itself was fatal for the petitioner's case in view of principles laid down in the afore-referred judgments. Besides it has also not been explained as to what was the need and what independent advice was available to the deceased Jamshed Bibi for making such a transaction in favour of her sister and that too orally and in the absence of any independent witness. Furthermore Muhammad Shahbaz, PW-2 in his evidence stated that he did not know both the petitioner i.e. vendee

and deceased Jamshed Bibi / the vendor. Moreover, he admitted that the deceased lady observed veil and at the time of alleged agreement she was in veil, therefore, identification of Jamshed Bibi at the time of agreement, if there was any, has also not been established. Parallel to this evidence of PW-2 appears to be based on information received from PW-3-Hashmat Ullah, husband of the petitioner, who has to protect interest of his own wife, therefore, his evidence cannot be relied upon in these circumstances. The respondents claimed that value of the property in dispute is more than two crore and not Rs.70,00,000/- which aspect also requires consideration while determining the authenticity of the alleged oral agreement which was executed without independent advice available to the deceased lady in favour of her real sister who may have been in a position to cause undue influence on her if such a transaction had actually been made. Consequently it is observed that the petitioner not only failed to prove existence of oral agreement in her favour but also could not demonstrate making any part payment of consideration / earnest money to the deceased. In this view of the matter the petitioner could not substantiate her claim for specific performance of the oral agreement and the judgments passed by the learned Courts below dismissing her suit concurrently are well founded and warrant no interference by this Court in the given circumstance of the case as no illegality, jurisdictional defect or misreading and

non-reading of record could be pointed out by learned counsel for the petitioner. Hence, being devoid of merits the instant Civil Revision is **dismissed** in limine.

(Muzamil Akhtar Shabir)
Judge

Waqar